GAUTHLEZA ENTERPRISES (PVT) LTD

Versus

RECORD NOTE (PVT) LTD

And

PROVINCIAL MINING DIRECTOR
MASHONALAND WEST

And

PROVINCIAL MINING DIRECTOR
MASHONALAND CENTRAL

And

MINISTER OF MINES AND MINING DEVELOPMENT

HIGH COURT OF ZIMBABWE
COMMERCIAL DIVISION
CHILIMBE J
HARARE 13 JANUARY & 10 June 2026

Special Plea

D. Tivadar for plaintiff
M. Tshuma for 1st defendant
No appearance for 2nd – 4th defendants

CHILIMBE J

> *"The first defendant provides no authorities for this perplexing proposition. If this submission is correct, it would mean that couples could not divorce once the prescription period of 3 years was over*".[1]

INTRODUCTION

[1] This matter concerns not a matrimonial causa, but a special plea of prescription resisting a declaratur on rights claimed under the Mines and Minerals Act [Chapter 21:05] ("the MMA"). I set out the brief facts hereunder; -

THE DISPUTE

[1] Paragraph 10 of the plaintiff`s heads of argument at page 490 of the record.

[2] In 1986, the plaintiff ("Gauthleza") became the registered holder of 3 claims titled (i) Chimbadzi N3 (BM21677), (ii) Chimbadzi N2 (BM21083), (iii) Chimbadzi N (BM20973) (collectively "*the Gauthleza claims*") located in Mashonaland West Province of Zimbabwe. The first defendant ("Record Note") is the holder, since 2017, of 3 claims (i) 4732BM, (ii) 4733BM, and (iii) 4745BM ("*the Record Note Claims*") also situated within the same province.

[3] Boundary disagreements arose between the two parties over their respective sets of mining claims. Gauthleza complained that Record Note had overpegged (encroached) into the Gauthleza claims. Record Note disputed this allegation and instead contended that Gauthleza` s claims had been "forfeited". This disparity constitutes the primary dispute between the parties.

[4] Gauthleza approached this court under case number HC 2740/23 seeking an order for cancellation of the Record Note registrations. Record Note contested the claim and the court, per MUNANGATI-MANONGWA J directed, on 2 May 2024, the third defendant to conduct an investigation into the dispute. The third defendant subsequently produced a report, the findings of which constitutes a further point of disagreement between the parties.

[5] Case number HC 2740/23 was subsequently struck off the roll for reasons which remain contested by the parties. Gauthleza claims the matter was struck off by DEME J on 6 August 2025, on a technicality; -namely its failure to cite the correct provision of the Mines and Minerals Act. Record Note insists that the matter was struck for lack of a valid cause of action. These varied interpretations of DEME J`s order stands as the third difference between the parties.

[6] Gauthleza instituted the present proceedings seeking the relief set out below.

1. It is declared that the First Defendant`s right in respect of its mining claims with registration numbers 4732BM, 4733BM, and 4745BM are subordinated to the rights of the plaintiff in respect of its mining rights known as Chimbadzi N3 (BM21677), Chimbadzi N2 (BM21083), Chimbadzi N (BM20973).
2. The First Defendant`s claims under registration numbers 4732BM, 4733BM, and 4745BM be and are hereby cancelled.
3. The Second, Third and Fourth Defendants are hereby ordered to effect the cancellation of the First Defendant`s claims under registration numbers 4732BM, 4733BM, and 4745BM.
4. The First Defendant to pay the plaintiff`s costs.

THE SPECIAL PLEA OF PRESCRIPTION

[7] Record Note filed a special plea of prescription but did not plead over to the merits. The special plea was disputed through a replication raising a number of factual contentions. The sting of Record Note`s special plea of prescription was set out as follows in paragraph 3[2] ; -

> "In the Founding Affidavit filed in HCH2740/23, the Plaintiff states that in May 2022 it raised a complaint with the offices of the 2nd and 3rd Defendants, seeking to have its mining rights prioritized over the 1st Defendant's mining rights. For the Plaintiff to raise such a complaint, it must have been aware at that time that it had certain purported rights over the mining claims in question. The Plaintiff could have instituted the present proceedings at that date but failed to do so."

[8] These averments are significant. Essentially, Record Note marked, not just the point when prescription allegedly commenced running, but the circumstances constituting the cause of action. This position was reiterated in the heads of argument filed on behalf of Record Note. Paragraph 11 thereof listed 9 items on the factual conspectus constituting the causa. So too did subsequent paragraphs 12, 13 and 14 of the same heads of argument.

[9] In the same vein, the heads of argument dwelt and what constitutes cause of action. Reference was made to *Cathrine Chiwawa v Apostolis Mutzuris & Ors* HH 7-09 and the following passage from the seminal decision of *Nan Brooker v Mudhanda & Anor* 2018 (1) ZLR 33 (S) at 35G-36A wherein the court remarked that:

> "In order to determine the question of prescription the court first had to make a finding on the cause of action upon which the respondent's claim was premised and when specifically, the cause of action arose. What constitutes a cause of action was described in *Abrahams & Sons v SA Railway & Harbours* 1933 CPD 626 at 637 where WATERMAYER J stated:
> 'The proper meaning of the expression 'cause of action' is the entire set of facts which give rise to an enforceable claim and includes every act which is material to be proved to entitle a plaintiff to succeed in his claim. It includes all that a plaintiff must set out in his declaration in order to disclose a cause of action.' "

[2] Of the special plea at record page 253.

[11] Gauthleza' s replicated thus to the averments in paragraph 3 of the special plea; -

> "8. This paragraph is misleading.
> 9.The Plaintiff did not seek the resolution of this dispute already in 2022 (sic) in accordance with the Mines and Minerals Act. It was the first defendant that objected to the resolution of the dispute by the Provincial Mining Director.
> 10.The Plaintiff then sought resolution of the dispute in the High Court.It was the First Defendant that objected to the resolution of the dispute by the High Court by raising a number of *in limine* points.
> 11.The First Defendant lost on all *in limine* points set out in its Notice of Opposition, but succeeded on an *in-limine* point that was taken, for the first time, at the hearing of the matter.
> The First Defendant now wishes to raise a point on prescription, once again, to prevent the final resolution of the dispute."

THE EVIDENTIARY POSITION.

[12] At commencement of the oral submissions by counsel, I inquired how the parties intended to address the evidentiary requirements attendant upon a special plea. What had been placed before me was the special plea, a commentary on it in the form of a replication, and then the heads of arguments. My query received firm assurances from both counsel that the factual issues were common cause. They were not.

[13] In fact, I repeated this query mid-point into the oral arguments. At one point, I permitted both counsel to consult-in between submissions, on the same point. Learned counsel reverted with the same consensus. There was no need to lead evidence. The subsequent arguments, including the proposition by Mr *Tivadar* (for plaintiff) on public and private declaratur (leading to the opening quote to this ruling) betrayed counsel`s judgment on the issue of evidence.

[14] Liberal reference was made by counsel to papers in each party`s respective bundles in support of their argument. Yet the position was that the bundles were not yet evidence before the court. See *Inebriant Cache & Anor v French Smith t/a Customs Services* SC 89-24 where MAVANGIRA JA held as follows at 21; -

> "21.A perusal of the judgment of the court *a quo* also reveals that the determination of the merits was purportedly justified by the learned judge on what can only be said to be allegations or averments by the respective parties as at the case management meeting stage. No evidence was led or adduced. The learned judge appears to have elevated the submissions and engagements with counsel as well as the documents, to the same level as evidence that had been properly adduced and placed before the court. "

[15] The special plea was improperly motivated in the absence of evidence to support and contest it. See Nan Brooker v Mudhanda (supra). Plenteous were the matters in contention. Including the adjectival jousts that occurred in case number HC 2740/23.

[16] Not even the procedure recognised in *Mhungu v Mtindi* 1986 (2) ZLR 171 can extend a reprieve to the parties for there are limitations to its application. See Doves Funeral Assurance (Pvt) Ltd v Harare Motorways (Pvt) Ltd & 3 Ors SC 64-23; *Chimanikire v Doves Funeral Assurance (Pvt) Ltd & 2 Ors* HH 699-22 and *Tapvice Enterprises & Ors v Tetrad Investment Bank Ltd* HH 220-20.

DISPOSITION

[17] The above conclusion on the evidentiary pre-requisite to special pleas makes it unnecessary to delve into the arguments presented on the merits. In the circumstances, I issue the following order; -

1. The first defendant`s special plea of prescription be and is hereby struck off.
2. The first defendant to bear the plaintiff`s costs of suit.

Masiya-Sheshe and Associates-plaintiff`s legal practitioners
MawereSibanda-first defendant`s legal practitioners

[CHILIMBE J____10/6/26]